

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #12	CCRB Case #: 202405494	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 05/24/2024 2:25 PM, Friday, 05/24/2024 2:45 PM, Friday, 05/24/2024 3:45 PM	Location of Incident: Howard Avenue and Pitkin Avenue in Brooklyn; 67th Precinct stationhouse	18 Mo. SOL 11/24/2025	Precinct: 73
Date/Time CV Reported Tue, 06/04/2024 2:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/04/2024 2:01 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert Cox	03721	948821	067 PCT
2. DTS Dennis Wu	04774	961463	067 PCT
3. PO James Obrien	00987	976308	067 PCT
4. PO David Carrasco	05435	975382	067 PCT
5. PO Alexis Ortiz	15416	975707	067 PCT
6. SGT Robert Bellantonio	02484	948651	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Deven Okvist	05635	947309	067 PCT
2. PO Melvin Carpio	19803	958371	067 PCT
3. PO Christopher Bonilla	03642	966472	067 PCT
4. PO Leonel Ortega	17805	975071	067 PCT
5. SGT Mark Eterno	02441	967057	067 PCT
6. PO Pedro Almanzar	20768	949991	067 PCT
7. SGT Rajesh Kohli	03694	955019	067 PCT
8. SGT Ryan Schwartz	04004	966844	067 PCT
9. PO Tanbir Ahmed	00425	975950	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Dennis Wu	Abuse: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu failed to explain to § 87(2)(b) the reason for a law enforcement activity.	A . Unfounded
B . SGT Robert Cox	Abuse: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox failed to explain to § 87(2)(b) the reason for a law enforcement activity.	B . Unfounded
C . DTS Dennis Wu	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu hit § 87(2)(b) against a vehicle.	C . Within NYPD Guidelines
D . SGT Robert Cox	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox hit § 87(2)(b) against a vehicle.	D . Within NYPD Guidelines
E . SGT Robert Cox	Discourtesy: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox spoke discourteously to § 87(2)(b)	E . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
F . SGT Robert Cox	Abuse: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox threatened § 87(2)(b) with the use of force.	F . Within NYPD Guidelines
G . SGT Robert Cox	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . SGT Robert Cox	Discourtesy: Sergeant Robert Cox spoke discourteously to § 87(2)(b)	H . Within NYPD Guidelines
I . DTS Dennis Wu	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu hit § 87(2)(b) against the ground.	I . Within NYPD Guidelines
J . SGT Robert Cox	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox hit § 87(2)(b) against the ground.	J . Within NYPD Guidelines
K . SGT Robert Cox	Force: Sergeant Robert Cox used physical force against § 87(2)(b)	K . Unable to Determine
L . SGT Robert Cox	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox restricted § 87(2)(b)'s breathing.	L . Unable to Determine
M . DTS Dennis Wu	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu restricted § 87(2)(b)'s breathing.	M . Unfounded
N . SGT Robert Cox	Discourtesy: Sergeant Robert Cox spoke discourteously to § 87(2)(b)	N . Within NYPD Guidelines
O . SGT Robert Cox	Abuse: Sergeant Robert Cox threatened § 87(2)(b) with the use of force.	O . Within NYPD Guidelines
P . DTS Dennis Wu	Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu used physical force against § 87(2)(b)	P . Unfounded
Q . SGT Robert Cox	Abuse: At the 67th Precinct stationhouse, Sergeant Robert Cox detained § 87(2)(b)	Q . Substantiated
R . SGT Robert Cox	Abuse: At the 67th Precinct stationhouse, Sergeant Robert Cox did not obtain medical treatment for § 87(2)(b)	R . Substantiated
S . SGT Robert Cox	Discourtesy: Sergeant Robert Cox spoke discourteously to § 87(2)(b)	S . Substantiated
T . PO David Carrasco	Force: Police Officer David Carrasco used physical force against § 87(2)(b)	T . Unable to Determine
U . PO James Obrien	Force: Police Officer James Obrien used physical force against § 87(2)(b)	U . Unable to Determine
V . PO Alexis Ortiz	Force: Police Officer Alexis Ortiz used physical force against § 87(2)(b)	V . Unable to Determine
W . PO David Carrasco	Abuse: Police Officer David Carrasco improperly used his body-worn camera.	W . Within NYPD Guidelines
X . PO James Obrien	Abuse: Police Officer James Obrien improperly used his body-worn camera.	X . Within NYPD Guidelines
Y . PO Alexis Ortiz	Abuse: Police Officer Alexis Ortiz improperly used his body-worn camera.	Y . Within NYPD Guidelines
Z . SGT Robert Cox	Discourtesy: At the 67th Precinct stationhouse, Sergeant Robert Cox spoke discourteously to § 87(2)(b)	Z . Unable to Determine
AA. SGT Robert Bellantonio	Discourtesy: Sergeant Robert Bellantonio was discourteous to § 87(2)(b)	AA. Unable to Determine

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on June 4, 2024.

On May 24, 2024, at approximately 2:25 PM, at the intersection of Howard Avenue and Pitkin Avenue in Brooklyn, Sgt. Robert Cox, Det. Dennis Wu, and PO Melvin Carpio, all of the 67th Precinct, stopped § 87(2)(b)'s vehicle. Sgt. Cox and Det. Wu approached § 87(2)(b) and allegedly failed to explain the reason for the stop (**Allegations A and B: Failure to Explain, Unfounded**). Sgt. Cox and Det. Wu both pushed § 87(2)(b) against his vehicle (**Allegations C and D: Force, Within NYPD Guidelines**). Sgt. Cox said to § 87(2)(b) "You're going to get fucking Tased" (**Allegation E: Discourtesy, Within NYPD Guidelines; Allegation F: Abuse of Authority, Within NYPD Guidelines**). Sgt. Cox pushed § 87(2)(b) a second time (**Allegation G: Force, Within NYPD Guidelines**). Sgt. Cox and Det. Wu then arrested § 87(2)(b). Sgt. Cox said to § 87(2)(b) "Put your hands behind your fucking back" (**Allegation H: Discourtesy, Within NYPD Guidelines**). Sgt. Cox and Det. Wu took § 87(2)(b) to the ground (**Allegations I and J: Force, Within NYPD Guidelines**). Sgt. Cox placed a knee on § 87(2)(b)'s back and allegedly restricted § 87(2)(b)'s breathing while § 87(2)(b) was on the ground (**Allegations K and L: Force, Unable to Determine**). Det. Wu allegedly restricted § 87(2)(b)'s breathing (**Allegation M: Force, Unfounded**). Sgt. Cox said again to § 87(2)(b) "You're going to get fucking Tased" (**Allegation N: Discourtesy, Within NYPD Guidelines; Allegation O: Abuse of Authority, Within NYPD Guidelines**). After § 87(2)(b) was handcuffed, Det. Wu allegedly twisted § 87(2)(b)'s wrist in a painful manner (**Allegation P: Force, Unfounded**). § 87(2)(b)'s passenger, § 87(2)(b), was detained in handcuffs on scene and then transported to the 67th Precinct stationhouse with § 87(2)(b) (**Allegation Q: Abuse of Authority, Substantiated**).

Upon arrival at the 67th Precinct stationhouse, § 87(2)(b) requested medical attention immediately at the desk, but Sgt Cox delayed unreasonably before calling EMS (**Allegation R: Abuse of Authority, Substantiated**). At the desk, Sgt. Cox asked § 87(2)(b) "Fucked up, right?" (**Allegation S: Discourtesy, Substantiated**). Subsequently, PO David Carrasco, PO James O'Brien, and PO Alexis Ortiz, all of the 67th Precinct entered the holding cells and allegedly punched § 87(2)(b) in the abdomen (**Allegations T, U, and V: Force, Unable to Determine**). All of these officers activated their BWCs late (**Allegations W, X, and Y: Abuse of Authority, Within NYPD Guidelines**). Sgt. Cox allegedly walked past the holding cells and whispered to § 87(2)(b) "Fuck you" (**Allegation Z: Discourtesy, Unable to Determine**). Sgt. Robert Bellantonio, of the 67th Precinct, allegedly said to § 87(2)(b) that his life did not matter (**Allegation AA: Discourtesy, Unable to Determine**).

§ 87(2)(b) was charged § 87(2)(b)

§ 87(2)(b) was released from the stationhouse with a summons § 87(2)(b)

The investigation obtained 18 BWC videos associated with this incident (Board Review 01), summarized in IA #60.

Findings and Recommendations

Allegation (A) Abuse of Authority: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu failed to explain to § 87(2)(b) the reason for a law enforcement activity.

Allegation (B) Abuse of Authority: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox failed to explain to § 87(2)(b) the reason for a law enforcement

activity.

§ 87(2)(b) provided a statement on August 14, 2024 (Board Review 10). § 87(2)(b) was driving his vehicle with § 87(2)(b) riding in the passenger seat. Neither § 87(2)(b) nor § 87(2)(b) wore a seatbelt. Both had their windows down. An unmarked police vehicle activated its sirens, and § 87(2)(b) pulled over. He immediately exited his vehicle. § 87(2)(b) was angry at having been stopped and asked the officers why they were “harassing” him. Sgt. Cox and Det. Wu exited their vehicle and approached § 87(2)(b). § 87(2)(b) continuously asked both Sgt. Cox and Det. Wu why they had pulled him over. Neither officer answered § 87(2)(b). Instead, they told § 87(2)(b) that he should not have exited his vehicle.

In Sgt. Cox’s BWC video (Board Review 04), at 57 seconds, Sgt. Cox exits the police vehicle. § 87(2)(b) is already standing at the rear of his vehicle. Sgt. Cox approaches § 87(2)(b) tells him that this is a car stop, and asks why he exited his vehicle. Sgt. Cox holds § 87(2)(b) by the arms and attempts to move him toward the driver side of his vehicle. § 87(2)(b) tells Sgt. Cox not to touch him, turns to Det. Wu, and threatens to punch Det. Wu in the face. Sgt. Cox opens the driver door, turns to § 87(2)(b) and holds him back, away from Det. Wu. At 1 minute 18 seconds, Det. Wu tells § 87(2)(b) that he is being detained. § 87(2)(b) asks, “For what?” Det. Wu responds that is a car stop for driving without a seatbelt.

Det. Wu’s BWC video (Board Review 03) is consistent with Sgt. Cox’s video. At 1 minute 14 seconds, Det. Wu tells § 87(2)(b) that he is being detained. When § 87(2)(b) asks, “For what?” Det. Wu responds that it is for a car stop for driving without a seatbelt.

Sgt. Cox provided a statement on December 5, 2024 (Board Review 14). Sgt. Cox was on patrol in the area when he noticed § 87(2)(b) and his passenger, § 87(2)(b) riding without seatbelts. Sgt. Cox decided to stop the vehicle for the seatbelt violation. Upon stopping, § 87(2)(b) immediately exited his vehicle. § 87(2)(b) was immediately irate, screaming, and moving toward Sgt. Cox in an aggressive manner. § 87(2)(b) threatened to hit Sgt. Cox. Sgt. Cox approached § 87(2)(b) with Det. Wu. Either Sgt. Cox or Det. Wu then explained to § 87(2)(b) that he was being stopped for a seatbelt violation.

Det. Wu provided a statement on December 5, 2024 (Board Review 15). § 87(2)(g) Det. Wu did not recall if any officer informed § 87(2)(b) of the reason for the stop.

According to NYPD Patrol Guide Procedure 209-09 (Board Review 43), when intending to issue a traffic summons, officers must inform the violator of the offense committed.

§ 87(2)(g)
It is therefore recommended that
Allegations A and B be closed as **Unfounded**.

Allegation (C) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu hit § 87(2)(b) against a vehicle.

Allegation (D) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox hit § 87(2)(b) against a vehicle.

Allegation (G) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox used physical force against § 87(2)(b)

According to § 87(2)(b) (Board Review 10), when Sgt. Cox and Det. Wu approached him, Det. Wu pushed § 87(2)(b) against his vehicle. § 87(2)(b) repeatedly told Det. Wu not to touch him. Sgt. Cox then also pushed him against his vehicle. § 87(2)(b) told Sgt. Cox that if he pushed him again, he would punch Sgt. Cox in the face. Det. Wu told § 87(2)(b) to do it. Sgt. Cox then pushed § 87(2)(b) again.

In Sgt. Cox's BWC video (Board Review 04), at 1 minute 0 seconds, Sgt. Cox takes hold of § 87(2)(b) by the left hand and attempts to move him toward the front of his vehicle. § 87(2)(b) says repeatedly, "Do not touch me," and refuses to move. Det. Wu takes hold of § 87(2)(b)'s sweatshirt. § 87(2)(b) says, "I'm going to punch you in your face." As addressed below (Allegations E and F), Sgt. Cox says to § 87(2)(b) "You're going to get fucking Tased." Sgt. Cox pushes § 87(2)(b) by the chest using his right hand, holding § 87(2)(b) back against his vehicle. At 1 minute 23 seconds, § 87(2)(b) attempts to move toward Sgt. Cox. Sgt. Cox holds his right hand out and holds § 87(2)(b) back by the chest, telling him to remain where he is. § 87(2)(b) again tells Sgt. Cox not to touch him. At 1 minute 28 seconds, § 87(2)(b) threatens to slap Sgt. Cox and then says, "Touch me again," while balling his right fist and lunging slightly at Sgt. Cox. At 1 minute 32 seconds, Sgt. Cox pushes § 87(2)(b) on the chest and tells him to stay back. Sgt. Cox then pushes § 87(2)(b) back against his vehicle again.

Det. Wu's BWC video (Board Review 03) is consistent.

According to Sgt. Cox (Board Review 14), § 87(2)(b) acted violently toward Sgt. Cox and Det. Wu from the moment they approached. Sgt. Cox was immediately concerned for their safety. Because the vehicle stop did not occur next to the sidewalk, § 87(2)(b) was in the roadway when he exited his vehicle. As such, Sgt. Cox moved § 87(2)(b) against his vehicle for his own safety. § 87(2)(b) then repeatedly attempted to move toward Sgt. Cox with a balled fist. Det. Wu held § 87(2)(b) back and away from the roadway, attempting to calm him down. Sgt. Cox did not see Det. Wu push § 87(2)(b) against his vehicle. Det. Wu held § 87(2)(b) in place for everyone's safety. Sgt. Cox was presented with Det. Wu's BWC video (Board Review 03), from 1 minute 22 seconds to 1 minute 26 seconds, which captured Sgt. Cox pushing § 87(2)(b) after § 87(2)(b) told Sgt. Cox to touch him again. Sgt. Cox explained that § 87(2)(b) was still moving toward him, so for safety, Sgt. Cox made sure § 87(2)(b) stayed back. Sgt. Cox was not pushing § 87(2)(b) in response to § 87(2)(b) telling him to do so. Sgt. Cox was not trying to do anything to further antagonize § 87(2)(b) and was only pushing him back for his safety.

According to Det. Wu (Board Review 15), § 87(2)(b) was angry and yelling when the officers approached him. As Det. Wu approached § 87(2)(b) their shoulders bumped briefly. Det. Wu did not push § 87(2)(b) against his vehicle. Det. Wu did not see Sgt. Cox push § 87(2)(b) against his vehicle.

According to Patrol Guide Procedure 221-01 (Board Review 31), officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

BWC video shows that § 87(2)(b) immediately exited his vehicle and was angry to the point of actively threatening to punch and slap Sgt. Cox and Det. Wu. Video also shows that § 87(2)(b) balled his fists and lunged at Sgt. Cox. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations C, D, and G** be closed as **Within NYPD Guidelines**.

Allegation (H) Discourtesy: Sergeant Robert Cox spoke discourteously to § 87(2)(b)

In Sgt. Cox's BWC video (Board Review 04), at 1 minute 34 seconds, Sgt. Cox instructs Det. Wu to arrest § 87(2)(b) and grabs § 87(2)(b) by the right arm. § 87(2)(b) pulls his right hand away while stating, "What you mean? Lock me up?" While Sgt. Cox grabs the right arm, he states, "Put your fucking hands behind your back."

According to Sgt. Cox (Board Review 14), § 87(2)(b) did not appear as though he would calm down and produce his license for the vehicle stop. Sgt. Cox made the decision to place § 87(2)(b) under arrest § 87(2)(b). Sgt. Cox informed § 87(2)(b) that he was being placed under arrest. Sgt. Cox recalled using profanity towards § 87(2)(b) when placing him under arrest, but did not recall the word used. Sgt. Cox was shown his BWC video, from 1 minute 32 seconds to 1 minute 36 seconds, which captured Sgt. Cox telling § 87(2)(b) to put his hands behind his "fucking" back. Sgt. Cox used profanity because he was issuing a lawful order to § 87(2)(b) so that he comply. There was no other reason he used the word "fuck."

According to the Mission, Vision, and Values of the Patrol Guide (Board Review 32), officers must value human life, respect the dignity of each individual, and render their services with courtesy and civility.

According to the Deputy Commission of Trials case 2017-17005 (Board Review 33), officers are permitted to use discourteous language during stressful situations. This is extended only when scenes are so chaotic that the duty of courteousness and professional behavior should be overridden by the immediate need to maintain order.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Within NYPD Guidelines**.

Allegation (I) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu hit § 87(2)(b) against the ground.

Allegation (J) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox hit § 87(2)(b) against the ground.

Allegation (K) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox used physical force against § 87(2)(b)

Allegation (L) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox restricted § 87(2)(b)'s breathing.

Allegation (M) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu restricted § 87(2)(b)'s breathing.

According to § 87(2)(b) (Board Review 10), after Sgt. Cox pushed § 87(2)(b) a second time, both he and Det. Wu grabbed § 87(2)(b) by the arms and pushed him facedown onto the ground. Det. Wu then placed his knee on § 87(2)(b)'s back, near the base of his neck. § 87(2)(b) shouted that he could not breathe. § 87(2)(b) remained on the ground for approximately 40 seconds. During this time, Det. Wu kept his knee of § 87(2)(b)'s back. § 87(2)(b) continued to shout that he could not breathe while he was on the ground.

Although § 87(2)(b) alleged Det. Wu placed his knee on § 87(2)(b)'s back, BWC video shows that it was Sgt. Cox who placed a knee on § 87(2)(b)'s back.

In Sgt. Cox's BWC video (Board Review 04), at 1 minute 36 seconds, Sgt. Cox and Det. Wu attempt to place § 87(2)(b) in handcuffs. § 87(2)(b) pulls away and crouches down near the ground. Sgt. Cox places his right hand behind § 87(2)(b)'s neck and pushes § 87(2)(b) facedown onto the ground while Sgt. Cox and Det. Wu stand over him. Sgt. Cox attempts hold § 87(2)(b) down onto the ground by placing his right knee on § 87(2)(b)'s left shoulder. At 1 minute 49 seconds, Det. Wu places one handcuff on § 87(2)(b)'s left wrist. § 87(2)(b) shouts to the public for someone to watch what Sgt. Cox and Det. Wu are doing to him. § 87(2)(b) shouts throughout the arrest. At 1 minute 57 seconds, Sgt. Cox pulls § 87(2)(b)'s right hand behind his back while holding § 87(2)(b)'s upper body down using his right arm and right leg. Sgt. Cox's right arm is positioned at the base of § 87(2)(b)'s neck and his knee is positioned mid-back. At 2 minute 8 seconds, Det. Wu is able to handcuff both of § 87(2)(b)'s wrists. Sgt. Cox then stands up while Det. Wu holds § 87(2)(b) on the ground. § 87(2)(b) stands up of his own power.

Det. Wu's BWC video (Board Review 03) is similar with regard to the force used to make the arrest. At 1 minute 31 seconds, Sgt. Cox grabs § 87(2)(b)'s right arm and pushes § 87(2)(b) forward by the back of the neck. § 87(2)(b) crouches down and Sgt. Cox pushes him onto the ground. § 87(2)(b) pulls his arms away from the officers. At 1 minute 50 seconds, Sgt. Cox holds § 87(2)(b) by the back of the neck and has his knee on the middle of § 87(2)(b)'s back. Sgt. Cox is on his feet the entire time and crouches down while leaning his knee on § 87(2)(b). At 1 minute 54 seconds, Sgt. Cox pulls § 87(2)(b)'s right hand behind his back and holds it there while Det. Wu finishing handcuffing him.

According to Sgt. Cox (Board Review 14), § 87(2)(b) initially resisted Sgt. Cox's attempt to place him under arrest by tensing his arms and refusing to place his hands behind his back. The officers forcibly took § 87(2)(b) to the ground to overcome his resistance and place him in handcuffs. § 87(2)(b) continued to resist the officers' efforts to pull his hands behind his back. Sgt. Cox did not place his knee near § 87(2)(b)'s neck in a manner that would restrict § 87(2)(b)'s breathing. § 87(2)(b) never complained that he was unable to breathe. Sgt. Cox affirmed placing his hands on the back of § 87(2)(b)'s neck, explaining that was how officers forcibly take someone to the ground. However, Sgt. Cox denied restricting § 87(2)(b)'s breathing.

According to Det. Wu (Board Review 15), Sgt. Cox decided to place § 87(2)(b) under arrest. Sgt. Cox initiated the arrest by trying to take hold of § 87(2)(b)'s hands and place him in handcuffs. Det. Wu immediately assisted by trying to take hold of § 87(2)(b)'s hands. § 87(2)(b) refused to give up his arms, screamed, tried to call a crowd to gather, and generally resisted Sgt. Cox's and Det. Wu's attempt to place him under arrest. § 87(2)(b) dropped to the ground of his own power. While on the ground, § 87(2)(b) continued to resist by moving his hands and screaming. Det. Wu only attempted to grab § 87(2)(b)'s arms and place them in handcuffs. Det. Wu did not place his knee on § 87(2)(b). Det. Wu did not recall if Sgt. Cox placed his knee on § 87(2)(b). § 87(2)(b) did not complain of difficulty breathing and only yelled for any nearby bystanders to record the interaction. Det. Wu did not restrict § 87(2)(b)'s breathing at any point.

Sgt. Cox generated a memo book entry regarding this incident (Board Review 18). The entry noted that § 87(2)(b) became irate and resisted arrest. He also noted a forcible takedown and wrestling, after which § 87(2)(b) complained of pain and a small laceration.

Threat, Resistance, and Injury report § 87(2)(b) (Board Review 19) notes that the

officers attempted to handcuff § 87(2)(b) when he started to resist by flailing his arms and legs and refusing to allow the officers to place him in handcuffs. Officers forcibly took § 87(2)(b) to the ground and wrestled him into handcuffs. § 87(2)(b) complained of pain to the wrist and body with abrasions on the right shoulder.

As above, according to Patrol Guide Procedure 221-01 (Board Review 31), officers may use force when it is reasonable to ensure the safety of a member of the service or third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Members of service will only use the reasonable force necessary to gain control or custody of a subject. Sitting, kneeling, or standing on the chest or back of a subject in a manner that compresses the diaphragm, thereby reducing the subject's ability to breathe, is a prohibited method of restraint. Members of service shall not use a prohibited method of restraint or a chokehold.

§ 87(2)(g)
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§ 87(2)(g). It is therefore recommended that **Allegations I and J** be closed as **Within NYPD Guidelines**.

Video shows that while Sgt. Cox placed his knee on § 87(2)(b)'s back, he maintained his weight mainly on his feet while using his knee to hold § 87(2)(b) on the floor to gain control of his hands and place him in handcuffs. Although Sgt Cox did not recall whether he placed a knee on § 87(2)(b)'s back, he denied taking any action to restrict § 87(2)(b)'s breathing. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegations K and L** be closed as **Unable to Determine**.

§ 87(2)(g) It is therefore recommended that **Allegation M** be closed as **Unfounded**.

Allegation (E) Discourtesy: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox spoke discourteously to § 87(2)(b)

Allegation (F) Abuse of Authority: At Howard Avenue and Pitkin Avenue in Brooklyn, Sergeant Robert Cox threatened § 87(2)(b) with the use of force.

Allegation (N) Abuse of Authority: Sergeant Robert Cox threatened § 87(2)(b) with the use of force.

Allegation (O) Discourtesy: Sergeant Robert Cox spoke discourteously to § 87(2)(b)

As noted above, in Sgt. Cox's BWC video (Board Review 04), at 1 minute 0 seconds, § 87(2)(b) immediately exits his vehicle and then, when Sgt. Cox guides him toward his vehicle, says repeatedly, "Don't touch me." Det. Wu then holds § 87(2)(b) against his vehicle. § 87(2)(b) says, "I'm going to punch you in your face, bro." Det. Wu, says, "I wish you would." § 87(2)(b) says, "I'll [inaudible; § 87(2)(g)] right now," while balling his right fist. Sgt. Cox says to § 87(2)(b) "You're going to get fucking Tased." Later, at 1 minute 54 seconds, after the officers take § 87(2)(b) to the ground, while they struggle to handcuff him, Sgt. Cox holds § 87(2)(b) on the ground and says again, "You're going to get fucking Tased." He also says, "Put your fucking hands behind your back," as he continues to attempt to arrest § 87(2)(b) with Det. Wu.

Sgt. Cox (Board Review 14) acknowledged telling § 87(2)(b) that he would use a Taser against him. Sgt. Cox did so because he was attempting to gain compliance from § 87(2)(b). As noted, Sgt. Cox stated that § 87(2)(b) was irate when the officers approached, balled his fists, acted in a violent manner, and threatened to hit the officers. Additionally, Sgt. Cox stated that if the officers were unable to place § 87(2)(b) in handcuffs after the takedown, they would be permitted to use a Taser to gain compliance. A Taser is used to overcome aggression and active resistance. Sgt. Cox did not recall if he used profanity at the time. Sgt. Cox was shown his BWC video, from 1 minute 47 seconds to 1 minute 55 seconds. Sgt. Cox affirmed hearing himself use the word, “fuck,” in the context of the Taser warning. Sgt. Cox used profanity in an attempt to gain § 87(2)(b)'s compliance. There was no other reason why Sgt. Cox used profanity.

NYPD Patrol Guide 221-01 (Board Review 31) permits the use of force when it is reasonable to ensure the safety of a member of the service or third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Any use of force must be reasonable under the circumstances.

According to Patrol Guide Procedure 221-08 (Board Review 34), a conducted electrical weapon (CEW, or Taser) can be an effective means of subduing aggressive suspects. A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical.

Patrol Guide Procedure 221-02 (Board Review 44) defines active aggression as the threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.

As noted above, the ruling in DCT case 2017-17005 (Board Review 33), permits officers to use discourteous language during stressful situations.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED], it is recommended that **Allegations E, F, N and O** be closed as **Within NYPD Guidelines**.

Allegation (P) Force: At Howard Avenue and Pitkin Avenue in Brooklyn, Detective Dennis Wu used physical force against § 87(2)(b)

According to § 87(2)(b) (Board Review 10), once he was in handcuffs, Sgt. Cox and Det. Wu lifted him from the ground. Det. Wu escorted § 87(2)(b) to the back of his vehicle. § 87(2)(b) continued to threaten the officers. In response, Det. Wu attempted to break § 87(2)(b)'s hands by twisting the handcuffs. Det. Wu grabbed the chain between the cuffs and lifted it while twisting them continuously to cause § 87(2)(b) pain. § 87(2)(b) felt as though his wrists were going to break.

In Sgt. Cox's BWC video (Board Review 04), at 4 minute 46 seconds, § 87(2)(b) says to Det. Wu,

“Stop twisting my shit before I really start wilding, bro.” Det. Wu’s left hand is wrapped around § 87(2)(b)’s left arm. It is unclear what actions Det. Wu takes with his right hand. § 87(2)(b) complains that his wrist is stuck. At 4 minute 59 seconds, § 87(2)(b) says that Det. Wu is trying to break his wrist. Det. Wu continues to hold § 87(2)(b) in the same position. At 5 minute 31 seconds, Det. Wu’s right hand holds § 87(2)(b)’s handcuffed hands. It is unclear what part of the handcuffs he holds. At 6 minute 4 seconds, § 87(2)(b) tells Det. Wu to release his wrists. Det. Wu continues to hold § 87(2)(b) in the same manner. At 6 minute 25 seconds, § 87(2)(b) accuses Det. Wu of squeezing the handcuffs. Det. Wu responds that he is not doing so. At 6 minute 30 seconds, § 87(2)(b) turns to the sidewalk and his handcuffs are visible. Det. Wu appears to be holding the chain of the handcuffs between § 87(2)(b) wrists. He does not take any other visible action.

Det. Wu’s BWC video (Board Review 03) provides a partial view from Det. Wu’s perspective. At 4 minute 44 seconds, § 87(2)(b) complains about the handcuffs and his wrists. Det. Wu’s left hand is looped through § 87(2)(b)’s left arm and holding his sweatshirt. Det. Wu holds § 87(2)(b) in the same position the entire time § 87(2)(b) complains. At 6 minute 1 second, § 87(2)(b) tells Det. Wu to release his wrist. The camera does not fully capture § 87(2)(b)’s wrist. At 6 minute 20 seconds, Det. Wu explains that the handcuffs are not made to feel comfortable. He then denies § 87(2)(b)’s allegation of squeezing the handcuffs.

According to Det. Wu (Board Review 15), § 87(2)(b) complained about his hands breaking while he was handcuffed. § 87(2)(b) also attempted to move his arms continuously. In order to better control § 87(2)(b) Det. Wu placed his arms beneath § 87(2)(b)’s armpit and pushed upward for better control. Det. Wu was presented with his BWC video, from 4 minute 40 seconds to 4 minute 44 seconds. Det. Wu explained that § 87(2)(b) moved around while in handcuffs, which hurt his arms. Det. Wu did not manipulate § 87(2)(b)’s hands in a manner that would cause injury.

According to TRI TINC § 87(2)(b) (Board Review 19), § 87(2)(b) complained about wrist pain after being placed in handcuffs. TATT § 87(2)(b) (Board Review 22) includes three images of § 87(2)(b)’s injuries. In the second image, § 87(2)(b) presents the tops of his wrists. It is unclear if there is any injury. In the second image, § 87(2)(b) points to his left arm, just above the wrist. It is unclear whether there is any injury.

Patrol Guide Procedure 221-01 (Board Review 31) permits the use of force when it is reasonable to ensure the safety of a member of the service or third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

BWC video shows that Det. Wu held § 87(2)(b) by the handcuffs while attempting control him. § 87(2)(b) continuously shouted and moved while Det. Wu held onto him. Despite the movements, Det. Wu did not change his hand position. Although § 87(2)(b) shouted that Det. Wu was squeezing the handcuffs, the videos do not show any movement suggesting that Det. Wu did so. Det. Wu responded in real time that he was not squeezing his hands and that handcuffs are not designed to feel comfortable. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation P** be closed as **Unfounded**.

Allegation (Q) Abuse of Authority: At the 67th Precinct stationhouse, Sergeant Robert Cox detained § 87(2)(b)

§ 87(2)(b) declined to provide a statement (Board Review 11). However, video reveals that he was handcuffed on scene and transported to the stationhouse.

In Sgt. Cox's BWC video (Board Review 04), at 2 minute 17 seconds, PO Carpio walks with § 87(2)(b) to the rear of § 87(2)(b)'s vehicle. Sgt. Cox points toward the officers' vehicle and tells PO Carpio to place § 87(2)(b) in the vehicle. At 3 minute 38 seconds, PO Carpio approaches Sgt. Cox again and points toward their vehicle. Sgt. Cox tells PO Carpio that § 87(2)(b) is going with them and instructs PO Carpio to stay with him. Sgt. Cox then waits on scene for additional vehicles to transport § 87(2)(b).

PO Carpio's BWC video is similar to Sgt. Cox's (Board Review 02). At 2 minute 19 seconds, PO Carpio takes § 87(2)(b) in handcuffs, toward Sgt. Cox. PO Carpio asks Sgt. Cox "Sarge, you wanna [indiscernible]," while pointing to § 87(2)(b). Sgt. Cox tells PO Carpio to place § 87(2)(b) in the vehicle. The video does not show any bystanders gathered nearby. At 3 minutes 33 seconds, § 87(2)(b) repeatedly lurches forward and shouts. An unseen individual on the far side of the roadway yells at § 87(2)(b) to relax and let the officers do their job. The video does not show any bystanders gathering or approaching on the near sidewalk. Several individuals walk along the sidewalk at a distance but do not stop or approach. At 3 minutes 41 seconds, PO Carpio approaches Sgt. Cox and asks, "He's going with us?" while pointing towards their unmarked vehicle where § 87(2)(b) is seated. Sgt. § 87(2)(b)[sic] says that § 87(2)(b) is going with them and instructs PO Carpio to stay with him.

According to Sgt. Cox (Board Review 14), § 87(2)(b) was calm throughout this incident and did not engage in any problematic behavior. However, § 87(2)(b) was placed in handcuffs so that the officers could remove him to a stationhouse and issue him a summons there. Sgt. Cox explained that because the scene was chaotic, § 87(2)(b) needed to be removed to a stationhouse. That was the only reason § 87(2)(b) was transported to a stationhouse. § 87(2)(b) was placed in handcuffs because that is procedure for transporting individuals to the stationhouse. After § 87(2)(b)'s arrest, both § 87(2)(b) and § 87(2)(b) were transported to the stationhouse. § 87(2)(b) was released from the stationhouse with a § 87(2)(b) summons.

The 67th Precinct command log (Board Review 23) shows that at 2:46 PM, § 87(2)(b) was brought to the stationhouse and processed. At 3:35 PM, § 87(2)(b) was released with a summons.

The investigation received summons § 87(2)(b) (Board Review 25), generated for § 87(2)(b) § 87(2)(b)

According to Patrol Guide 209-09 (Board Review 35), when issuing a summons returnable to the Traffic Violations Bureau or Criminal Court, officers are to request proof of identify and residence. This procedure instructs officers to remove the violator to an NYPD command for investigation if there exists any doubt concerning their identity.

§ 87(2)(g)

§ 87(2)(g)

Accordingly, it is recommended that **Allegation Q** be closed as **Substantiated**.

Allegation (R) Abuse of Authority: At the 67th Precinct stationhouse, Sergeant Robert Cox did not obtain medical treatment for § 87(2)(b)

According to § 87(2)(b) (Board Review 10), upon arrival at the 67th Precinct stationhouse, he was processed and placed in a holding cell, where he requested an ambulance. An unidentified officer said that they would call an ambulance and that it might take an hour to arrive. At some point, Sgt. Cox told § 87(2)(b) that they had called an ambulance, but § 87(2)(b) did not believe Sgt. Cox. § 87(2)(b) decided to take action to force the officers to acknowledge his request. He took off his shirt, ripped it, tied it around the cell bars, and tied the other end around his neck so as to appear that he was suicidal. In this way, he hoped to get the officers' attention, though he did not actually intend to harm himself. When officers entered the cell and took action to prevent § 87(2)(b) from harming himself (addressed below in the analysis of Allegations R, S, and T), they told § 87(2)(b) that an ambulance was on its way. Ultimately, an ambulance arrived and transported § 87(2)(b) to a hospital.

In Sgt. Cox's BWC video (Board Review 04), § 87(2)(b) arrives at the stationhouse at 20 minutes 26 seconds (14:45:43, or 2:45:43 PM). At 28 minute 6 seconds, Sgt. Cox, behind the camera at the stationhouse desk, asks § 87(2)(b) if he wants medical attention. § 87(2)(b) immediately and enthusiastically responds that he wants medical attention. The BWC timestamp is 14:53:33, or 2:43:33 PM.

PO Carrasco's, PO Ortiz's, and PO O'Brien's BWC videos (Board Review 05, 06, and 07) collectively show that these officers entered the cells to stop § 87(2)(b)'s apparent suicide attempt sometime shortly before 3:50 PM.

The investigation obtained the 67th Precinct Event Summary from 12:00 PM to 7:00 PM on May 24, 2023 (Board Review 27). The summary included two Events documenting requests for EMS at the stationhouse. Event Information for Event § 87(2)(b) (Board Review 26, page 2) shows that an ambulance was called to the stationhouse at approximately 2:39 PM, before the time of § 87(2)(b)'s arrival at the stationhouse. The details for that Event also state that EMS was needed for a walk-in. Event Information for Event § 87(2)(b) (Board Review 26, page 7) shows the next call for EMS, at 3:45 PM, for an emotionally disturbed prisoner. The Event Summary lists no intervening call for EMS to the stationhouse.

According to Sgt. Cox (Board Review 14), § 87(2)(b) asked for medical attention at the stationhouse desk. Sgt. Cox confirmed that he would have been the officer responsible for calling EMS, but then stated that another officer requested medical attention for § 87(2)(b). Sgt. Cox was shown the Event Information for job § 87(2)(b) the earlier request for EMS at the stationhouse at that time. Sgt. Cox stated that he and § 87(2)(b) were not yet at the stationhouse at 2:39 PM, and that that call was not for § 87(2)(b). Sgt. Cox was then also shown the details of job § 87(2)(b), which showed that EMS was requested approximately one hour after § 87(2)(b)'s initial request for medical attention at the stationhouse. Sgt. Cox did not know why the Event showed that the request was made an hour after § 87(2)(b) requested medical attention. Sgt. Cox maintained that EMS was called when § 87(2)(b) requested medical attention at the desk. Sgt. Cox

believed that this request should have appeared on the Event Summary, and he did not know why this call for medical attention would not appear on the Event Summary.

The investigation obtained the 67th Precinct command log (Board Review 23). The entry regarding § 87(2)(b)'s arrest includes a margin note that § 87(2)(b) was transported to the hospital by PO Felix § 87(2)(b).

The investigation obtained medical treatment of prisoner report MTP-§ 87(2)(b) (Board Review 29). The report noted that § 87(2)(b) was taken to § 87(2)(b) for medical and psychiatric aid because he attempted to commit suicide in a holding cell. The document does not list the time when officers called for medical attention.

Threat, Resistance, and Injury report # § 87(2)(b) (Board Review 20) shows, in the Civilian Information section, that § 87(2)(b) requested medical attention and was treated by EMS. He was also removed to the hospital for injury related to police actions.

Sgt. Cox's memo book entry regarding this incident (Board Review 18) reads that § 87(2)(b) was transported to § 87(2)(b) for psychiatric evaluation. It includes no other information about § 87(2)(b)'s request for medical attention. The timestamp only notes the time of the arrest, 2:26 PM.

The Prisoner Holding Pen Roster from the 67th Precinct (Board Review 24) includes an entry made at 3:00 PM, showing that PO Carpio helped lodge § 87(2)(b) and § 87(2)(b) in the cells. The entries do not show when EMS was called for § 87(2)(b).

The investigation obtained a recording of all police radio communications for the radio channel covering the 67th Precinct, from 2:36:46 PM to 8:51:39 PM on May 24, 2025 (Board Review 45). The communications are summarized in IA #194 (Board Review 46). At 19 seconds, the 67th Precinct stationhouse ("six seven base") requests a "bus" (ambulance) to the stationhouse for an injured walk-in complainant. That is the communication associated with the first non-pertinent Event, § 87(2)(b). At 1 hour 8 minutes 16 seconds, the 67th Precinct Desk requests a "bus" to the stationhouse for an "EDP" prisoner. That is the communication associated with Event § 87(2)(b) the Event for § 87(2)(b). Between 19 seconds and 1 hour 8 minutes 16 seconds, there is no intervening request for an ambulance to the stationhouse.

According to Patrol Guide Procedure 210-04 (Board Review 36), when a prisoner requires medical/psychiatric treatment, officers must request an ambulance. Officers must remove a prisoner to a hospital directly from the place of arrest, if necessary. Officers must also request an ambulance and have a prisoner removed to a hospital if they require medical or psychiatric treatment during arrest processing.

Sgt. Cox stated that he or another officer requested medical attention for § 87(2)(b) upon request, but the Event Summary and the recorded radio communications, show that there was no request for EMS to the stationhouse until approximately one hour after § 87(2)(b) requested medical attention at the desk. Sgt. Cox was unable to explain the reason why the immediate call for medical attention he described did not appear in the Event Summary. Further, Sgt. Cox's memo book states only that § 87(2)(b) was taken to a hospital for psychiatric evaluation following his apparent suicide attempt, and does not mention § 87(2)(b)'s injuries or request for medical attention. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

it is therefore recommended that **Allegation R** be closed as **Substantiated**.

Allegation (S) Discourtesy: Sergeant Robert Cox spoke discourteously to § 87(2)(b)

While not alleged, in Sgt. Cox's BWC video (Board Review 04), at 29 minute 7 seconds, as officers begin to escort § 87(2)(b) away from the desk, he asks, "He's you all's boss?" Sgt. Cox, from behind the camera, responds, "Fucked up, right?"

Sgt. Cox (Board Review 14) stated that he did not recall using profanity at the desk. Sgt. Cox was shown his BWC video from 29 minutes 8 seconds to 29 minutes 15 seconds. Sgt. Cox acknowledged making the statement and using the word, "fucked." He explained that he was just trying to build rapport with § 87(2)(b) so that § 87(2)(b) would calm down. There was no other reason Sgt. Cox used profanity.

Again, the NYPD's stated Mission, Vision, and Values (Board Review 32) require officers render services with courtesy and civility.

§ 87(2)(g)

. As such, it is recommended that **Allegation S** be closed as **Substantiated**.

Allegation (T) Force: Police Officer David Carrasco used physical force against § 87(2)(b)

Allegation (U) Force: Police Officer James O'Brien used physical force against § 87(2)(b)

Allegation (V) Force: Police Officer Alexis Ortiz used physical force against § 87(2)(b)

Allegation (W) Abuse of Authority: Police Officer David Carrasco improperly used his body-worn camera.

Allegation (X) Abuse of Authority: Police Officer James O'Brien improperly used his body-worn camera.

Allegation (Y) Abuse of Authority: Police Officer Alexis Ortiz improperly used his body-worn camera.

As noted above, § 87(2)(b) (Board Review 10) stated that while in the holding cell, he wanted to take action that would force officers to acknowledge his request for medical attention. § 87(2)(b) took off his shirt, ripped it, and tied it around the bars. He then tied the other end around his neck so as to appear to attempt to commit suicide. Officers entered the holding cell, untied the shirt from the bars and § 87(2)(b)'s neck, and then exited the cells. Approximately ten minutes later, § 87(2)(b) made another apparent suicide attempt by tying the cloth of his pant leg around the bars and his neck. PO Carrasco, PO O'Brien, and PO Ortiz entered the holding cell and rushed toward § 87(2)(b) grabbing him around the torso. All three officers jabbed § 87(2)(b) in the stomach multiple times with their fists. The officers then placed § 87(2)(b) in handcuffs and leg shackles and instructed him to sit down and wait for the ambulance.

At the beginning of PO Carrasco's BWC video (Board Review 05), he is already inside the cell with PO Ortiz and PO O'Brien. From the beginning, the video captures PO Carrasco standing in front of § 87(2)(b) who is in handcuffs and shirtless in the cell. At 7 seconds, § 87(2)(b) bends forward with his handcuffed arms in the air. PO Ortiz grabs the hands and helps him stand upright. PO Ortiz then places his hand on § 87(2)(b)'s abdomen and moves him back so that he will sit down. § 87(2)(b) refuses to sit. At 53 seconds, PO Carrasco attempts to assist PO Ortiz by pushing § 87(2)(b) on the abdomen. At 1 minute, audio begins as PO Carrasco activates the BWC. § 87(2)(b)

§ 87(2)(b) says multiple times, “Why are you hurting me?”. He then asks for an ambulance and a lawyer. Throughout the remainder of the video, PO Ortiz holds § 87(2)(b) down on the bench as PO Carrasco holds him by the chest. At 2 minute 4 seconds, PO Carrasco follows PO Ortiz out of the cell.

PO Ortiz’s BWC video is consistent with PO Carrasco’s (Board Review 07). The video begins with PO Ortiz already in the holding cell, holding § 87(2)(b) by the abdomen. At 31 seconds, PO Ortiz touches § 87(2)(b) by the abdomen again. § 87(2)(b) steps back as PO Carrasco and PO O’Brien approach him. PO Ortiz tries to move § 87(2)(b) back to sit down. PO Carrasco and PO O’Brien try to hold § 87(2)(b) back. PO O’Brien places his right hand on § 87(2)(b)’s abdomen. At 1 minute, PO Ortiz activates his BWC while holding § 87(2)(b). The remainder of the video is consistent with PO Carrasco’s.

PO O’Brien’s BWC video was also consistent (Board Review 06). The video starts with PO O’Brien already inside of the holding cell. At 41 seconds, PO O’Brien attempts to help hold § 87(2)(b) as he, PO Carrasco, and PO Ortiz attempt to move him into a seated position. At 1 minute, PO O’Brien activates his BWC as PO Ahmed enters the holding cells.

In PO Ahmed’s BWC video (Board Review 08), at 58 seconds, PO Ahmed enters the holding cell, where PO Ortiz and PO Carrasco are standing above § 87(2)(b) holding him down. As soon as PO Ahmed enters, PO O’Brien activates his BWC, followed by PO Carrasco and PO Ortiz.

PO Carrasco provided a statement on December 11, 2024 (Board Review 16). PO Carrasco was waiting to go out on patrol after roll call when he heard the cell attendant screaming that § 87(2)(b) was attempting to hang himself. PO Carrasco was not yet on duty and did not have his BWC affixed to his uniform at the time, but he picked up his BWC and ran into the holding cells, where he saw § 87(2)(b) screaming. An officer had already removed the material that § 87(2)(b) had used to attempt to hang himself. PO Carrasco entered the cell and grabbed § 87(2)(b) by the shoulder, attempting to push him down onto the bench so that he would sit. PO Carrasco never struck § 87(2)(b). No officer did so. PO Carrasco activated his BWC late because there was so much taking place and he did not think about activating his BWC immediately. PO Carrasco’s focus was on ensuring that § 87(2)(b) and the other officers present were safe.

PO Ortiz provided a statement on November 14, 2024 (Board Review 12). PO Ortiz had just finished getting ready for his tour and was waiting at the desk when he heard the cell attendant, PO Lechner, state that § 87(2)(b) was attempting to hang himself. PO Ortiz saw § 87(2)(b) in a makeshift noose, made of his shirt, tied around a pole and his neck. PO Ortiz and other officers immediately entered the holding cell area. PO Lechner lifted § 87(2)(b) as PO Ortiz and other officers removed the shirt from around § 87(2)(b)’s neck. PO Ortiz did not strike § 87(2)(b) and did not see any other officer do so. PO Ortiz activated his BWC after § 87(2)(b) was handcuffed and seated. PO Ortiz explained that due to the urgency of trying to remove § 87(2)(b) from the noose, he did not remember to activate his BWC earlier.

PO O’Brien provided a statement on December 11, 2024 (Board Review 17). PO O’Brien was waiting for roll call when he heard a commotion in the holding cells. PO O’Brien entered and saw § 87(2)(b) inside, shouting for an ambulance and moving his arms. PO O’Brien did not see anything else happening inside the holding cells. PO Carrasco and PO Ortiz were also present. The officers instructed § 87(2)(b) to calm down. PO O’Brien stated that he may have held § 87(2)(b) down. However, PO O’Brien did not punch § 87(2)(b). None of the officers did so. PO O’Brien activated his camera sometime after entering the holding cell. PO O’Brien’s focus was on ensuring that § 87(2)(b) did not harm himself.

The investigation obtained stationhouse surveillance video from the 67th Precinct (Board Review 09). The video for cell #1 captures § 87(2)(b) inside the holding cell pacing around. However, the video ends before it captures § 87(2)(b) apparently attempting to commit suicide or officers entering the cells. Due to the expiration of surveillance video, the investigation was unable to obtain later video capturing the interaction in question.

Medical Treatment of Prisoner report #MTP-§ 87(2)(b) (Board Review 29) states that § 87(2)(b) attempted suicide in the holding cells. It does not note any use of force.

Threat, Resistance, and Injury report # TACT-§ 87(2)(b) (Board Review 20) shows, in the Civilian Information section, that § 87(2)(b) was treated by EMS and removed to a hospital for injury related to police actions, but does not specify what actions. Note again that officers used force against § 87(2)(b) earlier, during his arrest.

NYPD Patrol Guide Procedure 221-01 (Board Review 31) permits the use of reasonable force to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

According to Patrol Guide Procedure 212-123 (Board Review 37), officers are mandated to activate their BWC prior to engaging in any police actions. They are to record any interactions that may hold evidentiary value. It also states that officers are to activate their BWC as soon as it is feasible and safe to do so after taking necessary action to preserve human health and safety when an unanticipated or exigent occurrence takes place.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegations T, U, and V be closed as **Unable to Determine**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegations W, X, and Y be closed as **Within NYPD Guidelines**.

Allegation (Z) Discourtesy: At the 67th Precinct stationhouse, Sergeant Robert Cox spoke discourteously to § 87(2)(b)

Allegation (AA) Discourtesy: Sergeant Robert Bellantonio was discourteous to § 87(2)(b)

According to § 87(2)(b) (Board Review 10), while he waited for an ambulance to arrive, Sgt. Cox walked by the holding cells and whispered, “Fuck you.” Sgt. Bellantonio also entered the holding cells and made an unspecified remark to § 87(2)(b). § 87(2)(b) responded, “So my life doesn’t matter?” Sgt. Bellantonio responded that § 87(2)(b)’s life did not matter.

No BWC video captured these alleged interactions (Board Review 01). As noted, The investigation was unable to obtain stationhouse surveillance video of any officer interactions with § 87(2)(b) in the holding cells after his apparent suicide attempt.

Sgt. Cox (Board Review 14) stated that he left the stationhouse to resume patrol after § 87(2)(b) was processed. Sgt. Cox did not interact with § 87(2)(b) in the holding cells. Sgt. Cox never said to § 87(2)(b) “Fuck you.” Sgt. Cox did not hear any officer say to § 87(2)(b) that his life did not matter.

Sgt. Bellantonio provided a statement on November 21, 2024 (Board Review 13). He was working as the Administrative Sergeant and completed paperwork at the stationhouse. Sgt. Bellantonio had no recollection of this incident. Sgt. Bellantonio did not know of any officer stating that § 87(2)(b) s life did not matter. Sgt. Bellantonio never made such a statement toward § 87(2)(b). He never saw § 87(2)(b) at the stationhouse. Sgt. Bellantonio did not hear any officer say to § 87(2)(b) “Fuck you.”

PO Carrasco (Board Review 16), PO Ortiz (Board Review 12), and PO O’Brien (Board Review 17) all denied hearing any officer say, “Fuck you,” to § 87(2)(b). They all denied hearing any officer tell § 87(2)(b) that his life did not matter.

Both Sgt. Cox and Sgt. Bellantonio denied making discourteous remarks toward § 87(2)(b) in the holding cell area. PO Carrasco, PO Ortiz, and PO O’Brien, who were present after § 87(2)(b) apparently attempted to hang himself, also denied hearing the use of any discourteous language against § 87(2)(b) § 87(2)(g).

It is therefore recommended that **Allegations Z and AA** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 38).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 39).
- Sgt. Cox has been a member of service for 14 years and has been a subject in 15 CCRB complaints and 40 allegations, of which six were substantiated.
 - Case 201505431 involved substantiated allegations of a frisk, a search, and a stop against Sgt. Cox. The Board recommended Command Discipline B and the NYPD imposed formalized training.
 - Case 202200624 involved substantiated allegations of unlawful arrests against Sgt. Cox. The Board recommended charges and the NYPD has not yet imposed discipline.
 - 202208369 involved substantiated allegations of a search of premises against Sgt. Cox. The Board recommended Command Discipline B and the NYPD imposed no penalty.
 - § 87(2)(g)
- Sgt. Bellantonio has been a member of service for 14 years and has been a subject in 4 CCRB complaints and 5 allegations, none of which were substantiated. § 87(2)(g)
- Det. Wu has been a member of service for nine years and has been a subject in ten CCRB complaints and 21 allegations, of which two were substantiated.
 - Case 202105901 involved a substantiated allegation of discourteous language. The Board recommended Command Discipline B and the NYPD imposed forfeiture of two vacation days.
 - Case 202207944 involved a substantiated allegation of a failure to provide an RTKA card. The Board recommended Command Discipline A and the NYPD

imposed no penalty.

- PO Carrasco has been a member of service for two years and has been a subject in one other CCRB complaint and three allegations, none of which were substantiated.
- PO Ortiz has been a member of service for two years and has been a subject in one other CCRB complaint and one allegation, which has not been substantiated. § 87(2)(g)
- PO O'Brien has been a member of service for one year and has been a subject in one other CCRB complaint and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 21, 2024, the NYC Office of The Comptroller had no record of a Notice of Claim filed in regard to this incident (Board Review 42).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 12

Investigator:	Shadman Khan	SI Shadman Khan	01/13/2025
	Signature	Print Title & Name	Date

Squad Leader:	Samuel Ross	IM Samuel Ross	02/28/2025
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date